
Case	Title / Nature of Case
02:00 PM	
24-CIV-04290	RAJESHWOR PANDEY VS. KIM MITCHELL
LINE 1	
RAJESHWOR PANDEY	SARAH SHAPERO
KIM MITCHELL	

PLAINTIFF/CROSS-DEFENDANT: RAJESHWOR PANDEY'S MOTION TO TRANSFER FUNDS

TENTATIVE RULING:

For the reasons stated below, the unopposed Motion to Transfer Funds (the "Motion") is DENIED as MOOT. Plaintiff's Request for Judicial Notice is GRANTED.

This case is related to San Mateo Case No. 23CIV05363. (See Notice of Related Case, filed October 29, 2025.) By this Motion, Plaintiff requests "an Order transferring the funds deposited into San Mateo County Case 24-CIV-04290 to San Mateo County Case 23-CIV-05363." (Notice of Motion, at p. 2:3-4.) The requested relief in the present motion has already been granted in the related action: "The Clerk of Court for the County of San Mateo, in the State of California, is directed to transfer the funds deposited in the Related Case 24-CIV-04290 into this action, Case 23-CIV-05363." (Order filed June 5, 2026 in Case No. 23CIV05363.)

The Motion is accordingly DENIED as MOOT.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

24-CIV-04948 GILBERTO SOLORZANO REYNAGA VS. JOSE LUIS CEJA CHAVEZ, ET AL.

LINE 2

GILBERTO SOLORZANO REYNAGA
JOSE LUIS CEJA CHAVEZ

KENNETH KLEEGER
NATHAN N. WANG

DEFENDANT/CROSS-COMPLAINANT: FLY TOWING LLC'S MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

TENTATIVE RULING:

The Motion is DENIED as MOOT.

The Court notes that the Motion for Leave to File Cross-Complaint (the "Motion") filed on November 20, 2025, by Defendant Fly Towing LLC (hereinafter, "Defendant" unless another defendant is specified) stated that the above-entitled matter was set in Department 15. However, effective May 11, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable David A. Silberman, Department 11, located at 800 North Humboldt Street, San Mateo, CA 94401, Courtroom G. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].) While the motion should have been renoticed, there has been no prejudice and the error is waived. The Court recognizes that this case was reassigned twice since the motion was filed.

Background

Per allegations, Defendant Jacinto Villanueva Roslaes and Defendant negligently made a sudden left turn in front of Plaintiff's oncoming vehicle, causing Plaintiff to brake suddenly. Defendant Jose Luis Ceja Chavez negligently hit Plaintiff's vehicle from the rear, pushing it into Defendant Roslaes' vehicle, causing serious injuries and damages to Plaintiff.

However, the Cross-Complaint was filed with an appended Proof of Service on November 20, 2025 (concurrently with the Motion), and the Clerk issued a Summons to Defendant Chavez on March 4, 2026, though there is no record of the service of the Summons. The Court noted that an unsigned version of the Cross-Complaint bearing an earlier date and no file-stamp is attached to the Declaration of Michael E. Gallagher in Support of the Motion (the "Gallagher Declaration"). (Gallagher Decl., ¶ 9, & Exh. A.)

Defendant applied *ex parte* for an Order shortening time for the hearing of the Motion, which application the Court denied. (Order, filed on December 17, 2025.)

Through its Motion, Defendant seeks an Order granting it leave to file a Cross-Complaint against Defendant Chavez and Roe Defendants.

Governing Law

The governing statutes provide that:

A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth either or both of the following:
